

THE AGE COMPLAINT

Email text extract. These two emails are Richard McLean's replies to the Equal Opportunity Commission about The Age's response. They are not The Age's own letter, and not an EOC decision. No PDF was attached to either email.

Email 1 of 2

Date: Tue, 26 Oct 2004 20:36:11 +1000
From: Richard McLean <richie@richiemclean.com>
To: rose.bryant-smith@eoc.vic.gov.au
Cc: Richard McLean <richiemclean@bigpond.com>
Subject: From Richard McLean RE: The Age complaint.

Hi Rose,

I received the response today from the Age, and I have a few things to mention, I will do this in short, succinct form.

RESPONSE: 'The complainant resigned from his position on May 31 2004'.

FACT: I had no choice but to leave, as I had bills, rent, loans, and credit cards to pay and had to find another job.

FACT: I had no guarantee of continued work. I know of two other people who suffered the same fate. It is FORCED resignation. I was literally fired after 4.5 years of service.

OPINION: I don't consider it resignation, rather termination.

RESPONSE: '...there is no substance to the complainants allegation that he has been discriminated against on the grounds of impairment'.

FACT: I took a day off because I was sick.

FACT: There were times I had had a week off work with no shifts, yet this was reflected as well in the lack of shifts for other casual workers. I know rosters are available-as they are saved at The Age.

FACT: I had one day in THREE WEEKS rostered on, whilst other casuals remained on NEARLY FULL shifts, despite at least one worker who did not want to work that much, as she is a single mother.

FACT: Ms Louisa LaRocca informed me in regards to Mr Simon Sheldon, former casual artist, was rostered on equal shifts with everyone else. Ms LaRocca does the rosters.

FACT: Ms LaRocca informs me Mr Jamie Brown, Manager, requested he be put on half-shift a week. ie: to CHANGE his hours.

THEREFORE: Ms LaRocca and Mr Brown conspire to change the rosters unfairly, as I had witnessed before, and had been done to me.

RESPONSE: '...the complainant has to establish that the Respondent treated him less favorably than it treated, or would have treated an employee who did not have his impairment in the same or similar circumstances'

FACT: Whether the day off was due to physical or mental illness, (and it was both), is not relevant. What IS relevant is that The Age did not take my sickness seriously, and I was punished for it by lack of work.

RESPONSE: 'The Complainant was rostered on in the Month of June'

FACT: I was rostered on for ONE DAY, whilst other casuals, of whom the roster is split up supposedly evenly, were on nearly FULL SHIFTS. ie: 3-4 days per week. Clearly discriminatory.

RESPONSE: 'The Respondent denies that the complainant has suffered any detriment'.

FACT: This happened at a time when I was unfortunately swapping medications. I suffered from mania, sleeplessness, and some delusion. This was due to the med changes, and to the fact I didn't have an income, after nearly FIVE YEARS commitment to the company.

FACT: I attempted to study full time to get my post grad in mental health sciences, which I was studying part-time. Yet Austudy was not nearly enough to survive on. I was forced to withdraw from the course.

FACT: In an attempt to work from home to do illustration, and to find cheaper rent, I had to offer my termination of residency where I had stayed for the time of my employment at The Age. I needed a studio and more privacy to run a business, and cheaper rent. I have since moved to West Footscray under these circumstances.

FACT: I have suffered loss of income.

FACT: I received no response from Management when asked to talk about my casual status. Not even a polite 'No'.

FACT: The resulting casual work and lack of commitment from The Age contributed to my stresses.

FACT: I still owe a great deal of money to people, including my ex-partner Robert Ferguson, who helped finance my move.

RESPONSE: The Age ...'denies it treated the complainant less favorably compared to another casual employee in the same or similar circumstances'.

FACT: I am not aware of anyone else who was in the same or similar circumstances.

FACT: If you refer to the above, I clearly was. I was not the only one to suffer from this discrimination.

RESPONSE: 'This requires a comparison with how the respondent would treat another casual employee with the same skill level as the complainant and with the same record as the complainant of unexplained absences.'

FACT: My skill level was suitably high, and my spectrum of work there covered all areas. News graphics, illustration, research, and even court drawing.

FACT: Mr Brown has written a reference for me explaining how talented I was. I can provide the document.

FACT: Ms LaRocca informs me the 'graphics tracker' is tracked for the amount of jobs you do. I am aware I fluctuated in this regard, but I am CONFIDENT if we saw those graphs, it would show my competence and number of jobs I do to be surely appropriate compared to other, even full time workers.

FACT: RE: 'Unexplained Absences'

- If the Age were more committed to me as a worker instead of giving me three weeks notice of future work for those years, I may have been more committed.

- I had very few unexplained absences. People get ill, and feel unwell. Apparently casuals do not have the 'right' to take time off.

- And if I don't work, I don't get paid.

- AND of course it goes two ways, they have conveniently forgotten to mention the amount of times I covered for other people or came in for extra days at short notice.

MY RESPONSE:

The Age has clearly denied treating me unfavorably on the basis of impairment.

I believe this not to be true.

Regards,

Richard McLean.

Richard McLean
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"Wickedness is a myth invented by good people to account for the curious attractiveness of others" - Oscar Wilde

Email 2 of 2

Date: Thu, 28 Oct 2004 12:13:50 +1000

From: Richard McLean <richie@richiemclean.com>

To: rosebryant-smith@eoc.vic.gov.au

Cc: richiemclean@bigpond.com

Subject: From Richard McLean. RE: The Age Complaint.

Hi Rose,

I received the response recently from the Age, and I have a few things to mention, I will do this in short, succinct form.

IMPORTANT FACT:

Upon asking, 'I would like to know why I have got one shift in the next three weeks, and other casuals are nearly on full shifts, when the roster is supposed to be divided up evenly. I would like to know whether I should speak to Luisa (Ms LaRocca), who has written the roster, or to you, who may have overseen this decision.' - To Jamie (Mr Brown - Manager),

He replied 'THAT IS JUST THE WAY THE ROSTER FELL.', and returned to his work.

When I confronted him about how upset I was by this, he then replied, 'WELL YOU HAV'NT BEEN THE MOST RELIABLE WORKER'.

THE FACT IS: It wasn't 'just how the roster fell', yet a response to the day off I had when I was sick.

I will now continue with the other responses, and relevant facts.

[The remainder of this 28 October email repeats the 26 October letter above, from the response about resignation on 31 May 2004 through the signature. The new material is the IMPORTANT FACT at the top.]